

EMPLOYMENT AGREEMENT

This **Employment Agreement** (*hereinafter referred to as the “Agreement”*, and more fully defined hereinbelow) is made and executed on 25th April 2022 (*hereinafter referred to as, “Effective Date”*) between Tabish Khan, an individual having PAN/Aadhar No. KRCPK0576C / 584240790542 and residing at H.No. 52 Sarai Nazar Ali Chand masjid Street, Gaushala Fatak, Ghaziabad, 201001 (*hereinafter referred to as the “Employee” or “you”, which term shall, unless it is repugnant to the context or meaning thereof, be deemed to include their legal heirs, successors and assigns*) and **Rite Infotech Private Limited**, a company, incorporated under the Companies Act, 2013 and having its office at SCO 32, 2nd Floor Sector 16, Faridabad, Faridabad, Haryana, India, 121002, India (*hereinafter referred to as the “Company” or “we”, which term shall, unless it is repugnant to the context or meaning thereof, be deemed to include its successors and assigns*).

The following shall be the terms of your employment:

Remuneration

Your gross emoluments will be INR 1,96,306/- per annum.

In addition to your salary, you may receive other benefits as per the applicable company policies at any point in time. The amount would be subject to any statutory, standard, permissible or elected deductions or set-offs applicable to your employment. Your compensation will be reviewed on an annual basis and your remuneration may be adjusted, depending on multiple factors, including your performance during the preceding performance period.

Designation

You are designated as **Associate Software Developer (Trainee)**.

Place of work

You shall work at our office at SCO 32, 2nd Floor, Sector 16, Faridabad-121002. However, you may be assigned transferred or deputed to units of the company/ its affiliates and customers in India. In the event of any assignment, transfer or deputation of your services, your salary and other benefits may be adjusted in accordance with the applicable Company policy.

Probation

You shall be on probation for a period of one hundred and eighty (180) days from the Effective Date of employment with the Company. Company may in its sole discretion at any time extend this period of probation for an additional period of sixty (60) days upon notice to you. You will continue to be on probation unless confirmed in writing.

Notice Period

During probation, your employment will be subject to termination by 60 days' notice on either side. The notice period can be reviewed and changed on confirmation. During the notice period, you will not be entitled to any leave or leave adjustment. It is further clarified you need to put in a minimum of 60 days of work; including holidays and weekly off days, before being relieved of your duties.

Next Review

We have yearly appraisal cycles, and your salary may be adjusted, depending upon various factors including overall performance of the company, your performance during the preceding appraisal period and the prevailing market conditions.

Cessation of Employment and Termination

Your employment will cease automatically upon completion of 60 years of age.

In case of termination on disciplinary grounds, no notice or payment in lieu of notice would be provided. In case of disorderly behaviour and conduct, or due to prolonged absence without information, habitual

absenteeism, or conduct that is detrimental to the interest of the Company, your services would be terminated without any prior notice.

Confidentiality

You understand and agree that during the term of this Agreement, you may have access and be exposed to Confidential Information of the Company and therefore, you must not divulge any information of confidential nature to any third party. 'Confidential Information' shall mean and include all written, verbal and/ or tangible information related to the Company's business or affairs including but not limited to trade secrets, intellectual property rights, customer and product information, technical know-how, and any other information which is by its nature confidential, whether or not designated as confidential by the Company. Violation of the same during the employment would lead to termination of employment. Notwithstanding anything contained before, the obligations relating to confidentiality shall survive the termination of this Agreement.

Intellectual Property

Notwithstanding anything contained in this Agreement, you agree that the title and ownership over any intellectual property developed by you, including but not limited to its modifications, derivative works and all rights therein, during the course of your employment with the Company and/or using the resources of the Company, either individually or jointly shall be, upon the creation, automatically, and without any further notice or execution of any deed or similar document, vested with and/or transferred to the Company. In the absence of such automatic vesting of the intellectual property by operation of the applicable law, you herein accept and agree to transfer in entirety such intellectual property to the Company along with ownership and right of possession.

Employment Status

Being a full time employee of the Company, you will have to devote yourself exclusively to the business of the Company. You shall not take up any other work for remuneration or otherwise (part time or otherwise) or work in any capacity or be interested directly or indirectly (except as shareholder or debenture holder) in any other trade or business without permission in writing from the management. You shall also not indulge/involve yourself in any activity that may hamper/damage the Company's business operations/reputation directly or indirectly. Any such act shall be liable to termination of your services from the Company without any prior notice or compensation.

You herein understand that the Company will invest considerable resources and time to train and impart invaluable knowledge and skills to you and you will continue to receive various technical and practical training at the cost of the Company to discharge your official duties and perform as per the expectation of the Company and this will upscale you in terms of experience and general career growth.

For such training, the Company will be spending substantial sums of money and incurring substantial costs, expenses, and man-hours. You herein understand and agree that the Company would be put to substantial financial loss, inconvenience, loss of resources, man-hours, etc., in the event you fail to complete the training or choose to take benefit of such efforts and investment of the Company, and thereafter immediately terminate their employment therewith. In light of the same, you hereby agree that you shall not be entitled to terminate your employment with the Company for a period of 24 months from the Effective Date. Provided, however, the Company shall have the right to terminate your employment in accordance with the terms of this Agreement.

You understand that you will be privy to the Confidential Information of the Company and in furtherance of the same, the Company places upon you, the following reasonable restrictions on solicitation and competition: (a) You shall not engage or undertake any activity similar to the services which would, either directly or indirectly, compete with the business of the Company, during the subsistence of the Agreement and for a period of 2 (Two) years after the termination thereof, with any third party; and (b) You shall not, on your own account or for any other person, firm, or company solicit or entice, or make an attempt to solicit or entice, any

of the employees or clients of the Company for the period of 2 (Two) years after ceasing to be an employee of the Company under this Agreement.

Indemnity

You shall indemnify and hold harmless the Company from and against all claims incurred or sustained by the Company as a consequence of the your willful misconduct, negligence, fraud, misrepresentation, or breach of its obligations under the Agreement, breach of any of its representations and warranties under this Agreement, or violation of any of the applicable laws.

Under no circumstances shall the Company be liable for any loss of actual or anticipated revenues, profits, goodwill, opportunity of business or for any consequential, special, incidental, exemplary, punitive or other indirect losses or damages, whether arising out of or related to this Agreement, including those in contract, tort (including negligence) even if such loss was foreseeable and the Company had been advised of the possibility of such damages or loss.

Governing Law and Dispute Resolution:

This Agreement shall be governed by and construed in accordance with the laws of India, without reference to conflict of laws or choice of laws rules. All legal actions relating to this Agreement shall be subject to the exclusive jurisdiction of the courts in Faridabad.

Service Conditions

In addition to the above, you will be governed by the terms and conditions as per Company policies, including but not limited to the leave policy, working hours, IT policies etc., which are in force and as amended from time to time.

For Rite Infotech Pvt. Ltd.

Acknowledged and Accepted

Sandeep Khurana
Director

Tabish Khan